

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA**

In the matter of an Appeal made under
Section 331(1) of the Code of Criminal
Procedure Act No.15 of 1979, read with
Article 138 of the Constitution of the
Democratic Socialist Republic of Sri
Lanka.

**Court of Appeal Case No.
CA/HCC/0233/2025**

Kurunnan Watte Gedara Ratnapala

**High Court of Kandy
Case No. HC/367/2019**

ACCUSED-APPELLANT

Vs.

The Hon. Attorney General
Attorney General's Department
Colombo-12

COMPLAINANT-RESPONDENT

BEFORE : **P. Kumararatnam, J.**
R. P. Hettiarachchi, J.

COUNSEL : **Radha Kuruwitabandara for the Appellant.
Dileepa Peiris, PC, ASG for the
Respondent.**

ARGUED ON : **02/07/2026**

DECIDED ON : **28/08/2026**

JUDGMENT

P. Kumararatnam, J.

The above-named Appellant was indicted by the Attorney General under Section 365 B(2)(b) of the Penal Code for committing three counts of Grave Sexual Abuse, on Weerasinghe Gamage Dulara Dewmina Weerasinghe on 06.01.2018 and between 20.12.2017 and 06.01.2018.

The trial commenced on 09/05/2022. After leading all the necessary witnesses and marking Productions P1 to P2, the prosecution had closed the case on 10/01/2025. The Learned High Court Judge had called for the defence and the Appellant had made a statement from the dock and closed his case.

The Learned High Court Judge after considering the evidence presented by both parties, convicted the Appellant only for the 1st count and sentenced him as follows:

- For the first count, he was sentenced to 08 years rigorous imprisonment and a fine of Rs.15,000/- was imposed on him subject to a default sentence of 03 months simple imprisonment. Additionally, he was ordered to pay a compensation of Rs.50,000/- with a default sentence of 06 months simple imprisonment.

The Appellant was acquitted from the 2nd and 3rd counts.

Being aggrieved by the aforesaid conviction and sentence, the Appellant preferred this appeal to this court.

The Learned Counsel for the Appellant informed this court that the Appellant has given consent to argue this matter in his absence. During the argument he was connected via the Zoom platform from prison.

The Appellant has raised the following grounds of appeal:

1. The Learned Trial Judge erred in law and in fact in convicting the Accused-Appellant on the basis of evidence that was unsafe, unreliable and insufficient to establish guilt beyond reasonable doubt.
2. The Learned Trial Judge misdirected himself by failing to properly evaluate and give due weight to the material omissions, contradictions and inconsistencies in the evidence of PW1, which went to the root of the prosecution's case.
3. The Learned Trial Judge erred in law by treating the evidence of PW2 as corroborative, despite expressly acknowledging that PW2 did not witness any act and did not corroborate PW1.
4. The Learned Trial Judge erred in law and in fact by misappreciating the medical evidence of PW4 (Judicial Medical Officer) and by treating the neutral medical evidence as supportive of the prosecution case.
5. The Learned Trial Judge failed to properly consider the defence version and evidence suggesting prior animosity and motive for false implication, thereby denying the Accused-Appellant a fair evaluation of his defence.

6. The Learned Trial Judge has erred in law in deciding that the Prosecution case was proved beyond a reasonable doubt
7. The Conviction and sentence are not safe to stand.

As the appeal grounds are interconnected, they shall be considered together.

The Learned Counsel contends that based on the evidence offered, it is impossible to conclude that the prosecution has proven its case against the Appellant beyond a reasonable doubt.

The background of the case *albeit* briefly is as follows:

The victim was 12 years old when he encountered this bitter ordeal. He lived with his father and elder brother in Gampola. His mother had gone abroad. His grandmother's house was also situated close to his house. The Appellant was a neighbour of the victim and he was known as 'Ratnapala Mama'. His wife also had gone abroad and he had no children.

On the day of the incident pertaining to the first charge, the Appellant had met the victim at a boutique and had requested to help him to clear the branches of a tree fallen on to his house. As a result, the Appellant's mother also sustained injuries. He had gone to the Appellant's house with his friend called 'Nimsara' at about 2.30pm or 3.30pm. While he was there, his friend had left the Appellant's house, leaving him alone. At that time, the Appellant had offered some liquor which the victim had consumed and thereafter, he had felt dizziness. Using this opportunity, the Appellant made the victim lie on a bed and had intercrural sex after removing his trouser. Having come to know that the victim had gone to the Appellant's house, his elder brother, PW2 Dulanga had gone to the Appellant's house and assaulted the Appellant and had brought the victim back home. The matter was then informed to his grandmother and the complaint was lodged in the police on 08.01.2018, two days after the incident.

During the trial, although the victim took up the position that he only consumed alcohol given by the Appellant, during the cross examination and in the statement initially given to the Police, the victim claimed that the Appellant had given him a Cannabis cigar and he claimed that the Appellant made payments to the victim.

During the trial, the victim denied that he had been visiting the Appellant's house since 2017. He maintained this was his first visit.

PW4, the JMO who examined the victim had noted down a short history given by the victim. He had told the doctor that the Appellant had performed intercrural sex and gave him Rs.100/-.Further, the victim had said that he had visited the Appellant's house previously, and that the same had taken place 2 weeks earlier.

The Appellant in his dock statement had denied the incident.

The medical evidence is very important in this case. The JMO had opined that he cannot exclude or confirm the alleged act.

365B. Grave Sexual Abuse

(1) Grave sexual abuse is committed by any person who, for sexual gratification, does any act, by the use of his genitals or any other part of the human body or any Instrument on any orifice or part of the body of any other person, being an act which does not amount to rape under section 363, in circumstances falling under any of the following descriptions, that is to say—

(a) without the consent of the other person;

(aa) with or without the consent of the other person when the other person is under sixteen years of age;

(b) with the consent of the other person while such other person was in lawful or unlawful detention or where that consent has been

obtained, by use of force, or intimidation or threat of detention or by putting such other person in fear of death or hurt;

(c) with the consent of the other person where such consent has been obtained at a time the other person was of unsound mind or was in a state of intoxication induced by alcohol or drugs.

The acts that fall under the scope of Section 365B must be graver than mere touch. The definition found within the section also consists of the words: “which does not amount to Rape”, clearly indicating that the most accurate interpretation would be that the act, to constitute grave sexual abuse, must be more than merely touching a person.

In **Mahalakotuwa v. The Attorney General** [2011] 2 B.L.R 406 D.S.C Lecamwasam, J. held that:

“On a plain reading of the above section it is clear, that the section envisaged a grave situation which falls short of rape. It cannot be a mere ‘Touch’. It has to be much more serious than a touch and to come within the ambit of ‘Grave Sexual Abuse’ it must be of a very high degree, so serious and grave in nature that it can only fall short of Rape, but must surpass situations expected in section 345, 365 and 365A”.

Further, in the case of **Yoga v. Attorney-General** [2010] 2 Sri L.R. 162 it was held that:

“To establish a charge under section 365 (B) of the Penal Code the prosecution must establish that the alleged act was done with the intention of having sexual gratification. This aspect must be proved beyond reasonable doubt.”

In the case of **Jayathilaka v. Attorney-General [2008] 2 Sri L.R. 117**, rape and grave sexual abuse was distinguished as follows:

“In a charge of rape, the prosecution must prove penetration, in a charge of grave sexual abuse prosecution is not required to prove penetration. The ingredients in a charge of rape are different from the ingredients that must be proved in a charge of grave sexual abuse.”

The alleged act in this situation is that the Appellant committed intercrural sex on the victim. Such an act, if established, would constitute grave sexual abuse considering its seriousness and gravity.

As such, in this case, the pertinent issue at hand would be whether the Appellant had, in fact, committed intercrural sex as claimed by the victim. The JMO was unable to express an opinion whether to confirm or exclude the possibility of intercrural sex being committed on the victim. Accordingly, whether or not the alleged act took place can be ascertained by assessing the credibility of the victim’s testimony.

In this case, the victim has claimed that he felt dizzy after consuming alcohol given by the Appellant. However, in his cross examination he had said that he smoked a Cannabis Cigar. Further, in the statement given to the police, the victim has clearly mentioned that the Appellant had given him a Cannabis cigar (beedi).

In addition to this contradiction, it is evident that he had told the JMO and the police that he was visiting the Appellant’s house since 2017 but in his cross examination, he had denied this. Further, in both the statement to the police and the history given to the JMO, the victim has claimed that the Appellant had made payments of Rs. 100- Rs. 130 each time.

Furthermore, PW2, when giving evidence during the course of the trial, claimed that he got to know that the Appellant had showed the victim

obscene videos on a previous occasion, which their father had not taken any action on as the Appellant was a villager known to them. Further, PW2 in his evidence had stated that the accused had performed anal sex on the victim on an earlier occasion as well. It is quite evident that this was not mentioned in the victim's testimony, and as such would constitute major omissions and contradictions.

Inter se contradictions refer to conflicts or inconsistencies between the testimonies of different prosecution or defense witnesses, which can weaken or even destroy a case. The corresponding legal effect of such contradictions would completely depend how material they are to the core of the case. Therefore, if the testimonies of key witnesses would fundamentally contradict each other on the corpus delicti (the core facts of the crime) which would include, for instance, the sequence of events, identification of the accused, recovery of evidence; the court must treat such fundamentally contradicting versions as unreliable.

The rationale for this is that such major contradictions would create a reasonable doubt in the prosecution's case. It has been established in a number of legal precedents that the benefit of the doubt must be considered in favour of the accused, which would then often result in an acquittal.

The Attorney General v. Sandanam Pitchai Mary Theresa [2011] 2 SLR 292 the court held that:

“Whilst internal contradictions or discrepancies would ordinarily affect the trustworthiness of the witness statement, it is well established that the Court must exercise its judgment on the nature of the inconsistency or contradiction and whether they are material to the facts in issue”.

In the case of **Joy Devaraj vs The State of Kerala** (2024) INSC 473 it was held:

“The appellant was required to demonstrate that the incongruities in the statements of the several eye witnesses shook the roots of their credibility. The threshold for disbelieving a witness is not mere discrepancy or inconsistency but material discrepancy and inconsistency, which renders the account narrated by the witnesses so highly improbable that the same may safely be discarded altogether from consideration.”

In **Jayaseelan V T.N.** AIR 2009 SC 1091 the court held that:

“Normal discrepancies in evidence are those which are due to normal errors of observation, normal errors of memory due to lapse of time, due to mental disposition such as shock and horror at the time of occurrence and those are always there however honest and truthful a witness may be. Material discrepancies are those which are not normal, and not expected of a normal person. Courts have to label the category to which a discrepancy may be categorized. While normal discrepancies do not corrode the credibility of a party's case, material discrepancies do so.”

Considering these contradictions and the opinion of the JMO, a serious doubt has arisen as to the act committed by the Appellant on the victim. Thus, it is not safe to convict the Appellant based on such contradictory testimony. These infirmities and inconsistencies observed above go to the root of the case, therefore would constitute material discrepancies which certainly undermine the evidence given by the victim and PW2. As such, the prosecution has proved the case beyond a reasonable doubt, therefore the benefit of doubt must be given to the Accused.

The grounds of appeal therefore have merit, and due to the aforesaid reasons, I set aside the conviction and the sentence dated 20/05/2025 imposed on the Appellant by the Learned High Court Judge of Kandy. Therefore, I acquit him from the charge.

Accordingly, the appeal is allowed.

The Registrar of this Court is directed to send this judgement to the High Court of Kandy along with the original case record.

JUDGE OF THE COURT OF APPEAL

R. P. Hettiarachchi, J.

I agree.

JUDGE OF THE COURT OF APPEAL